STANDARD OPERATING PROCEDURE			P-6400
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED **08/13/07**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL: K-9 UNIT	RESOURCES			
SUBJECT K-9 UNIT OPERATIONS		CROSS REFERENCE P-6600 CRITERIA FOR K-9 UNIT ACTIVATION		

I. Purpose:

The purpose of this policy is to establish the guidelines for the operations of the K-9 Unit.

II. Policy:

The Sarpy County Sheriff's Office has established a K-9 Unit to expand and supplement service to the community. The operations of the K-9 Unit and Sheriff's Office personnel involved in activities with the K-9 Unit shall be governed by the following procedures.

III. Definitions:

A. K-9: Trained Law Enforcement Canine.

B. K-9 HANDLER: One deputy trained to function with and control a K-9.

C. K-9 TEAM: One deputy trained and functioning as a handler and one trained and functioning K-9.

D. K-9 UNIT COMMANDER: A deputy with the rank of lieutenant or higher, assigned to assume supervisory responsibilities of the K-9 team(s).

E. K-9 PATROL UNIT: A marked Sarpy County Sheriff's Office patrol unit equipped to transport a K-9 team.

IV. Procedure:

A. K-9 Team Operational Guidelines:

1. K-9 handlers shall maintain control of their assigned K-9s at all times, on and off duty.

2. The K-9 team(s) shall patrol in a designated, specifically equipped vehicle clearly marked as a "K-9 Unit."

a) Suspects and visitors shall not be transported in a K-9 patrol unit if the K-9 is present.

b) Sheriff's Office employees may only be transported in a K-9 patrol unit if the K-9 handler believes the K-9 will not be agitated.

3. The K-9 team(s) shall work a shift determined by the K-9 Unit Commander and the Patrol Division Commander.

4. If a K-9 handler works an overtime shift, he or she must obtain permission from the K-9 Unit Commander or Patrol Division Commander to utilize his or her assigned K-9 for the overtime shift.

5. When assigned to an incident or requested to respond by a supervisor or command officer, the K-9 handler shall evaluate the situation to determine if the use of the K-9 is feasible. In cases where the decision is not to deploy the K-9, the handler shall assist if requested or, if the situation changes, may deploy the K-9.

a) If a disagreement arises between the supervisor or command officer in charge of the incident and the K-9 handler regarding the deployment of the K-9, the supervisor or command officer shall defer to the judgment of the K-9 handler regarding the deployment of the K-9.

b) If the supervisor or command officer in charge of the incident determines that the deployment of the K-9 would compromise the team or the investigation of the incident, that decision shall stand regardless if the K-9 handler believes the K-9 should be deployed.

c) The K-9 Unit Commander shall be notified by memorandum of any disagreements that arise regarding the deployment of a K-9.

B. **K-9 Team Response:** If a K-9 team is on duty, the team shall be assigned as a back-up unit for the following incidents:

1. Crimes in progress including, but not limited to,:

a) Burglary-in-progress.
b) Robbery-in-progress.
c) Hold-up alarm.

2. Felony and misdemeanor crimes where the suspect has fled on foot and possible tracking or search may be necessary.

3. Major disturbances.

4. Traffic stops resulting in a consent search.

5. Other incidents where a supervisor or command officer believes a K-9 team may be of assistance (see P-6600 Criteria for K-9 Unit Activation).

C. **Sheriff's Office Personnel Responsibilities:** Those Sheriff's Office personnel that have contact with a K-9 team shall adhere to the following guidelines:

1. Under no circumstances shall any employee strike a K-9 handler or roughhouse with a K-9 handler while a K-9 is present.

2. Employees shall not strike or discipline a K-9.

3. Employees shall not tease or harass a K-9 (inside or outside of the K-9 patrol unit) unless engaged in training and authorized by and in the presence of the K-9 handler.

4. Employees shall not touch or pet a K-9 without permission from and in the presence of the K-9 handler.

5. Except in an emergency situation or when given prior approval of the K-9 handler, employees shall not give commands to a K-9.

6. Except in an emergency situation or when given prior approval of the K-9 handler, employees shall not enter a K-9 patrol unit or remove a K-9 from a K-9 patrol unit or any other area of confinement.

7. When the K-9 is deployed during an incident, employees shall obey directions of the K-9 handler with regards to working in conjunction with the K-9 team

D. **Injury to K-9 Handler:** In the event a K-9 handler is injured in the performance of duty, the following procedures shall be followed:

1. The supervisor or deputies on the scene should make every effort to safely secure the K-9 in the K-9 patrol unit.

2. Care should be taken during the separation from the K-9 and the K-9 handler. Securing the K-9 is essential for the protection of those assisting the injured K-9 handler.

3. If possible, the initial attempt to secure the K-9 should be by a person familiar with the K-9. A bite sleeve, available in the K-9 patrol unit, may be used to assist in removing and securing the K-9.

4. If an initial attempt to remove and secure the K-9 is unsuccessful, the on-scene supervisor shall determine the need to utilize force options (e.g. Taser, aerosol subject restraint, etc.) to remove and secure the K-9 to provide emergency medical attention to the K-9 handler. The on-duty watch commander or ADC shall be notified immediately under such circumstances.

5. The Nebraska Humane Society may also be contacted to assist with securing the K-9, if time permits.

E. **Building Searches-K-9 Handler Responsibilities:** When deployed for a building search with a high probability of encountering suspects, the following procedures shall be adhered to:

1. Prior to beginning a building search with a K-9, the K-9 handler shall ensure all deputies are out of the search area.

2. A K-9 shall not be used to search facilities that contain substances potentially harmful to the animal unless overriding risk to human life is present.

3. If tactically feasible, the K-9 handler shall give loud, verbal warnings prior to deploying the K-9 in a search area.

a) The verbal warning shall be “Sheriff’s Office, sound off or I’ll send in my dog and (s)he will bite you if you do not surrender.”
b) No less than two (2) warnings shall be given prior to deployment.
c) A reasonable amount of time shall be given to allow for a response.
d) The handler shall document the time of each warning and the time the search was initiated.
e) If the building searched is large or has several floors, additional warnings shall be given when entering a different area or floor, as appropriate.
f) Where there is a high probability to believe that there is a suspect who speaks a language other than English, a warning in the suspect’s native language should be provided, if possible.

4. If no response to the warnings is received after a reasonable amount of time, the K-9 shall be deployed. The K-9 may be unleashed during the search unless there is an imminent risk of injury to innocent persons who may be in the building.

5. The K-9 handler may request another deputy accompany the K-9 team when entering a search area or building (see S-3600 Criteria for K-9 Unit Activation).

F. **Crowd Control- K-9 Handler Responsibilities:** K-9 teams may respond to situations where crowd control may be necessary (e.g. riots, protests, etc.).

1. K-9 teams may respond as backup but the K-9 may not be deployed for crowd control for peaceful demonstrations.

2. K-9 teams may be used upon approval of a command officer in charge of an incident to protect life or property during a riot or other major unlawful assembly after an order to disperse has been issued.

a) In these situations, K-9s shall be leashed at all times to protect individuals from serious injury.

b) K-9 handlers shall not initiate any offensive action, unless to guard against imminent loss of life, serious bodily injury, or substantial property damage.

c) Should it be required to disperse chemical agents for crowd control, the command officer in charge of the incident shall notify the K-9 handlers prior to release of any chemical agents.

G. **Tracking- K-9 Handler Responsibilities:** A K-9 team may be used, with supervisory approval, to track missing persons or criminal suspects. K-9s used for tracking missing persons should remain on leash to provide a reasonable measure of safety to the subject of the search.

H. **Searches for Drugs- K-9 Handler Responsibilities:** Without consent, probable cause or a search warrant, K-9 searches for drugs are authorized only when there is no reasonable expectation of privacy in the item(s) and/or areas to be searched. If not specifically addressed in the following procedures, K-9 handlers shall use the foregoing principle and the direction of the K-9 Unit Commander to determine the permissible scope of K-9 searches.

1. Public Facilities and Places:

a) K-9s may not be used to sniff luggage or related personal items in the physical possession (i.e. control of or close proximity to) an individual in a public facility or place unless:

(1) There is reasonable suspicion that the personal possession contains illegal drugs or evidence of a crime, and

(2) The time required to conduct the sniff is limited in duration.

b) K-9s may be used to sniff luggage or other personal effects of an individual on either a random or selective basis if the items are not in the possession of the owner (e.g. on conveyor belts, in the possession of baggage handlers, etc.).

c) Whenever possible, the facility manager of a public facility should be provided advanced notification when a K-9 search is planned. The search should be conducted without interference or annoyance to the public or interruption of facility operations.

d) K-9 searches of the exterior of residences, either individual dwellings or the common areas of multiple dwellings, are only permissible with a search warrant or consent of the property owner.

e) K-9 searches in schools should be limited to situations where there is reasonable suspicion to believe that illegal drugs are being sold, possessed, and/or consumed on the premises. Whenever possible, the principal or designated authority shall be provided advanced notification when a K-9 search is planned. Searches in schools shall be limited to inanimate objects where there is no reasonable expectation of privacy (e.g. lockers).

2. Search Warrants: When a K-9 is used to search for drugs pursuant to a search warrant, the following procedures shall be adhered to:

a) Generally, during the initial service of the search warrant, the K-9 team shall be assigned to the perimeter to cover the most likely avenue(s) of escape from the location.

b) All persons, except those directed by the K-9 handler, shall be removed from the location prior to the K-9 being deployed for a search.

c) Any pets or other distractions or hazards shall be removed, as directed by the K-9 handler.

d) Doors and windows shall be closed and all air circulating devices (e.g. air conditioning, furnace, fans, etc.) shall be turned off.

3. Motor Vehicles:

a) K-9 drug sniffs of motor vehicles may be conducted when:

(1) There is reasonable suspicion to believe that the operator or passengers are in possession of illegal narcotics, or

(2) The K-9 sniff is limited to the exterior of the vehicle, or

(3) The operator provides consent for a search of the vehicle.

b) K-9 handlers are encouraged to conduct K-9 sniffs of the exterior of all legally stopped vehicles.